

**25STCV33609 25STCV33609**

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-07-30

Motion: PLAINTIFF'S MOTION FOR ATTORNEY'S FEES, COSTS, AND EXPENSES

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Case Number: 25STCV33609 Hearing Date: July 30, 2026 Dept: 731

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS  
ANGELES - CENTRAL DISTRICT

ORLANDO ENRRIQUE MAGANA,

Plaintiff(s),

vs.

GENERAL MOTORS, LLC; and DOES  
1-100,

inclusive,

Defendant(s).

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CASE NO: 25STCV33609

[TENTATIVE] ORDER RE: PLAINTIFF'S  
MOTION FOR ATTORNEY'S FEES, COSTS, AND EXPENSES

Dept. 731

July 30, 2026

8:30 A.M.

Matter No. 15

Moving Party: Plaintiff, Orlando Enrique Magana

Opposing Party: Defendant, General Motors, LLC

Notice: OK

Background Facts

Plaintiff Orlando Enrique Magana ("Plaintiff")  
sues Defendant General Motors, LLC ("Defendant") and Does 1-100 pursuant to a November  
18, 2025, Complaint alleging various statutory claims arising from  
nonconformities in a vehicle leased by Plaintiff and manufactured and/or  
distributed by Defendant.

On April 21, 2026, the parties  
agreed to resolve the matter by way of a Code of Civil Procedure Section 998  
Offer to Compromise served by Defendant and accepted by Plaintiff.

Now before the Court is Plaintiff's  
opposed motion for attorneys' fees and costs and expenses as the prevailing  
party in a California Song-Beverly Consumer Warranty Act ("SBA") action.

#### Motion for Attorneys' Fees and Costs

##### a. Legal Standard

A prevailing party is entitled to  
recover costs as a matter of right. (Code Civ. Proc., § 1032, subds. (a)(4),  
(b).) Attorney's fees are also recoverable as costs when authorized by  
contract, statute, or law. (Code Civ. Proc., § 1033.5, subd. (a)(10).) Fees and  
costs are recoverable where a party rejects an offer made pursuant to Code of  
Civil Procedure section 998 offer and later fails to obtain a more favorable  
judgment or award.

The Court begins this inquiry "with  
the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the  
reasonable hourly rate." (PLCM Group v. Drexler (2000) 22 Cal.4th 1084,  
1095 (PLCM Group).) From there, the "lodestar figure may then be  
adjusted [according to a multiplier enhancement] based on consideration of  
factors specific to the case, in order to fix the fee at the fair market value  
for the legal services provided." (Ibid.) Relevant multiplier factors  
include "(1) the novelty and difficulty of the questions involved, (2) the  
skill displayed in presenting them, (3) the extent to which the nature of the  
litigation precluded other employment by the attorneys, [and] (4) the  
contingent nature of the fee award." (Ketchum v. Moses (2001) 24 Cal.4th  
1122, 1132.)

##### b. Discussion

In connection with the settlement  
in this action, Plaintiff moves for an order granting attorneys' fees and costs  
and expenses in the amount of \$21,354.78, including: (1) \$11,805.00 (22.2

hours) in incurred attorney's fees; (2) an additional \$2,500.00 for Plaintiff's counsel to review Defendant's Opposition, draft the Reply brief, attend the hearing on this Motion, draft an opposition to Defendant's anticipated motion to tax costs, and attend the hearing thereto with (3) \$622.28 in costs and expenses; (4) \$525.00 in anticipated costs and expenses for a Court reporter for the hearing on the instant Motion (5) and a 0.5 multiplier enhancement on attorney fees for \$5,902.50.

The Court discusses fees and then costs and expenses in turn.

i.

#### Reasonable Fee Rates

Plaintiff's motion seeks the following rates for counsel: (1) Peter Maissian, Esq. at \$525.00 per hour; (2) Sina Rezvanpour, Esq., at \$625.00 per hour; and (3) Zachary Francey at \$425.00 per hour. (See Motion, p. 5.)

Defendant's opposition does not dispute the requested fee rates, instead challenging the sought-after fees on the grounds of reasonable or unrecoverable hours. (See, e.g., Opposition, pp. 5-8 [arguing that hours are excessive and recommending lower fee awards as calculated using Plaintiff's requested rates and Defendant's suggested hours].)

Based on the lack of dispute as to reasonable rate, the Court accepts the rates advanced by Plaintiff as reasonable for the marketplace in relation to similar legal matters.

ii.

#### Reasonable Hours

As to hours, Plaintiff argues for 22.2 hours reasonably incurred on this action by Plaintiff's counsel, while Defendant argues that only 10.7 were reasonably incurred, leaving a lodestar of \$4,390.00. (Compare Motion, p. 6, with Opposition, pp. 5-8.)

After review, the Court agrees that the hours presented by Plaintiff are either not recoverable or inflated.

As for non-recoverable hours, clerical hours appear to be woven into certain of the time entries and block billed with substantive work. (See, e.g., Motion, Maissian Decl., Ex. B at 11/14/25 [billing for “initial file organization”].) Because the combination of these hours cannot be separated into neat clerical and non-clerical categories, the Court addresses hours as a whole.

When a voluminous fee application is made, the court may make across-the-board percentage cuts either in the number of hours claimed or in the final lodestar figure. (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 40, citing *Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 41.) A trial court is not required to state each charge it finds reasonable or unreasonable. A reduced award might be fully justified by a general observation that an attorney overlitigated a case. (*Karton v. Ari Design & Construction, Inc.* (2021) 61 Cal.App.5th 734, 744.) But the court must clearly explain its reasons for choosing the particular negative multiplier that it chose; otherwise, the reviewing court is unable to determine that the court had valid, specific reasons for its across-the-board percentage reduction. (*Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 41.)

Here, the Court determines that the hours spent on this action do not reflect the hours that a reasonable practitioner should have expended in litigating this action to settlement. The hours spent preparing the case for filing in November 2025, for example, amounted to 6.5 hours of preparation into a case largely involving issues often repeated in lemon law actions.

However, the Court does not agree with Defendant that only 10.7 hours of work are reasonable. Instead, the Court reduces the requested hours by 30% from (1) 16.1 hours to 11.27 hours for Peter Maissian and (2) 3.8 hours to 2.66 hours for Sina Rezvanpour. The Court, however, determines that the 2.3 hours expended on this action by Zachary Francey were reasonable.

Maissian

= 16.1 hours x 0.70 reflecting 70% of 16.1 hours = 11.27 hours =  
(\$5,915.75)

Rezvanpour

= 3.8 hours x 0.70, reflecting 70% of 3.8 hours = 2.66 hours = (\$1,662.50)

No

deduction for Zachary Francey = 2.3 x \$25 = \$977.50

The total in fees for

work up through the filing the motion for fees is thus:

\$5,915.75 + \$1,662.50 +

\$977.50 = \$8,556.75

iii.

Multiplier

The Court determines that despite

the contingent nature of representation and despite the skill displayed by

counsel, no multiplier is merited here as the case did not present novel

questions and the time records reflect sporadic work spanning several months

and not on its face involving difficult questions.

iv.

Fees Conclusion

Fees are thus GRANTED in the amount

of \$8,556.75, comprised of \$5,916.75 in Maissian fees, \$1,662.50 in Rezvanpour fees, and \$977.50 in Francey fees.

The Court also GRANTS \$1,500.00 of

the \$2,500.00 in fees sought by Plaintiff for anticipated work relating to

preparing a reply to the opposition, through attending this hearing, as

supported by Exhibit 1 attached to the Maissian declaration accompanying

Plaintiff's reply.

v.

Costs and Expenses

The Court also GRANTS Plaintiff's

motion as to incurred costs of \$622.28. The Court does not credit the

opposition argument that the costs incurred are insufficiently supported as

they are supported by counsel's declaration and attached fee records, which is

sufficient for purposes of this motion.

However, the Court agrees with Defendant that the \$525.00 in "expected costs" are insufficiently supported by the moving papers, particularly where Plaintiff's fees and costs records fail to reflect those anticipated costs. (See Motion, Maissian Decl., Ex. B & Reply, Maissian Decl., Ex. 1.)

c. Conclusion

Plaintiff Orlando Enrique Magana's motion for attorneys' fees and costs is GRANTED, in part, in the amount of \$10,679.03.

Plaintiff Orlando Enrique Magana is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at [email protected] indicating intention to submit on the tentative as directed by the instructions provided on the court website at [www.lacourt.org](http://www.lacourt.org). If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: July 30, 2026 \_\_\_\_\_

MARK C. KIM

Judge of the  
Superior Court